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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive, Defendants.	Case No.: STK-CV-UF-2026-0001032 **DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S REPLY IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT** **Date: July 15, 2026** **Time: 9:00 a.m.** **Dept.: 10A** Complaint Filed: February 10, 2026 Trial Date: TBD

INTRODUCTION

Defendants KATIE PALACIOS and HOPE PROGRAM hereby file this reply in support of Defendants' demurrer to the First Amended Complaint ("FAC").

A. Generative AI.

On May 22, 2026, at 9:31 am, Defendants served Plaintiff with the demurrer and related documents. (Van Dine, Decl. at ¶2.) At 4:16 pm that same day, Plaintiff served Defendants with his opposition to the demurrer, evidentiary objections, declaration, and opposition to request for judicial notice. (Van Dine, Decl. at ¶3.)

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"In the last two years, many courts have confronted briefs populated with fraudulent legal citations resulting from attorneys' reliance on generative AI." (*Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 443.) While Plaintiff is a self-represented litigant, he is nonetheless responsible for the briefs he files with this Court and is obligated to verify citations. (*Sheerer v. Panas* (2026) 119 Cal.App.5th 367, 371.)

Here, Plaintiff's opposition repeatedly relies on the representation that Title 15, California Code of Regulations, section 3574(f)(1) reads "[t]reatment completion and parole discharge are legally separate decisions". (Pl.'s Opp.'n at 3:15-19; 4:16-17; 12: 11-12.) That language, however, is not found anywhere in 15 C.C.R. § 3574—or within any statute for that matter. Defendants believe this is a hallucination resulting from Plaintiff's reliance on generative AI.

B. Plaintiff's Failure to Exhaust Administrate Remedies

"Exhaustion of administrative remedies is a jurisdictional prerequisite to resort to the courts." (*Upshaw v. Superior Court* (2018) 22 Cal.App.5th 489, 505) (quotation omitted).) Plaintiff's opposition does not dispute that Plaintiff failed to exhaust available administrative remedies. Instead, Plaintiff presents ostensibly four arguments attempting to justify his failure to exhaust. Plaintiff's arguments, however, all boil down to the assertion that he should be permitted to skip the exhaustion requirement because exhausting would not have given him the money he seeks. That, however, is not the law. And such a rule would only encourage litigation. In this regard, examining each of Plaintiff's purported reasons individually reveals that Plaintiff's arguments are without merit.

Plaintiff first argues that exhaustion is not required "[w]here the agency has no jurisdiction to provide the remedy sought[.]" (Pl.'s Opp.'n at 8:13-14.) "In deciding whether to entertain a claim that an agency lacks jurisdiction before the agency proceedings have run their course, a court considers three factors: the injury or burden that exhaustion will impose, the strength of the legal argument that the agency lacks jurisdiction, and the extent to which administrative expertise may aid in resolving the jurisdictional issue." (*Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072, 1082).)

Here, these elements each weigh in favor of requiring exhaustion. There would be no injury or burden imposed by exhaustion and Plaintiff does not articulate one. The argument that the agency

lacks jurisdiction is false. Plaintiff's claim is that the Defendants made false representations that were reflected in his discharge review reports. (FAC at 7:1-24.) California law provides:

> [A] supervised person may file a grievance regarding any mistake of fact contained in the discharge review report pursuant to the administrative remedies procedures provided in section 3480, et seq. If a mistake of fact is substantiated and that mistake results in a change in the recommendation to retain on parole, the corrected discharge review report with the recommendation to discharge shall be corrected and submitted to the Board of Parole Hearings with a request to reconsider the decision to retain.

(Cal. Code Regs. tit. 15, § 3723.) And the administrative expertise of the Board of Parole Hearings would clearly aid in resolving any alleged jurisdictional issue.

Second, Plaintiff argues that *Pathermore* is "distinguishable" because CDCR maintains a specialized health-care appeal process (Form 602-HC) capable of addressing the medical determinations at issue." (Pl.'s Opp.'n at 9:18-22.) This argument is nonsensical. The FAC alleges that this action concerns statements submitted in connection with Plaintiff's Discharge Review—statements which Plaintiff alleges were false. (FAC at 7:4-24.) Again, California law explicitly provides that a supervised person, such as Plaintiff, "may file a grievance regarding any mistake of fact contained in the discharge review report pursuant to the administrative remedies procedures provided in section 3480, *et seq*." (Cal. Code Regs., tit. 15, § 3723.)

California law also explicitly provides that a "supervised person who wishes to submit a grievance . . . shall do so in writing to the Office of Grievances in the parole region where they are supervised." (Cal. Code Regs., tit. 15, § 3482(a)(2).) Thereafter, a "claimant who wishes to appeal a decision or remedy issued by an Office of Grievances shall do so in writing by submitting a CDCR Form 602-2 . . . directly to the Office of Appeals by regular mail sent to the address indicated on the form or by electronic kiosk or tablet, if available." (Cal. Code Regs., tit. 15, § 3484(a).) Where the appeal is denied on the merits, the administrative remedies process is exhausted. (*See* Cal. Code Regs., tit. 15, § 3485(l)(5)(A).) A special 602 form is not required.

Plaintiff's third argument is that "*Wright*'s rule applies only when the agency has underlying jurisdiction to resolve the core dispute and can provide *some* meaningful relief." (Pl.'s Opp.'n at 9:3-5.) To be clear, the rule Plaintiff refers to is the rule that exhaustion is required "even when seeking

money damages unavailable in the administrative process." (*Wright v. State of California* (2004) 122 Cal.App.4th 659, 668).) Plaintiff's argument here is simply a restatement of Plaintiff's first argument. Regardless, monetary relief is available as part of the administrative process. (See Cal. Code Regs., tit. 15, § 3483(j)(1)(A) ("the remedy requires the disbursement of funds, in which case the remedy shall be implemented no later than 90 calendar days after the date at the top of the decision letter").)

Plaintiff's fourth and final argument is that exhaustion would be futile because CDCR relied on "HOPE's own determinations". (Pl.'s Opp.'n at 9:9-15.) Why exhaustion would be futile, however, is unexplained. "The futility exception requires that the party invoking the exception can positively state that the agency has declared what its ruling will be on a particular case." (*Coachella Valley*, 35 Cal. 4th at 1080-81.) Here, Plaintiff does not and cannot state positively what the Board of Parole Hearings would have ruled in response to Plaintiff's allegations that the representations by Defendants found in the Discharge Review reports were false.

C. There is no "blanket retention policy".

Plaintiff argues that "HOPE applies a uniform corporate policy under which no parolee can ever satisfy completion criteria prior to discharge from parole, regardless of clinical progress, compliance, risk reduction, or time in treatment." (Pl.'s Opp.'n at 4:10-12.) According to Plaintiff that "policy was documented under oath in *In re Dwyer*". (*Id.* at 4:12-13.) Plaintiff's argument is flawed in several respects.

First, Plaintiff's Exhibit A purports to be the order from *In re Dwyer* he relies upon. (Pl.'s RJN, EX A at 25.) The order reflects that "the CASOMB provider ***and the Division of Adult Parole Operations*** take the position that a sex offender cannot successfully 'complete' a sex offender management treatment program short of being discharged from parole." (*Id.* at 23) (emphasis added). The court exercised its statutory discretion pursuant to Penal Code § 3008(d)(2) to grant the petitioner's request that the length of his sex offender management program be less than the entire period of his parole based on the facts specific to the petitioner. (*Id.* at 23-24.)

Here, there has been no showing that Plaintiff presents the same facts as the petitioner in *Dwyer*. For example, in *Dwyer* the court relied on the fact that the petitioner's "supervising parole officer has recommended his complete discharge from parole supervision". (*Id.* at 24.) There is no

allegation in this action that anyone has recommended that Plaintiff be discharged from parole supervision other than Plaintiff.

Moreover, the *Dwyer* order is dated March 20, 2023. (*Id.* at 25.) Effective October 14, 2024, 15 C.C.R. § 3574 outlines the requirements of the sex offender treatment program. 15 C.C.R. § 3574 explicitly provided that "[s]upervised persons may complete a sex offender management program before discharge from parole, as contemplated by" Penal Code § 3008(d). (Cal. Code Regs., tit. 15, § 3574(d) (Oct. 14, 2024).) In this regard, the events at issue in *Dwyer* concerned the actions of both a CASOMB certified provider and the Division of Adult Parole Operation, which predated the regulation governing sex offender treatment programs.

Finally, the only factual allegation in the FAC that supports Plaintiff's allegation that he was subjected to a "blanket retention policy," is the allegation that Defendant Palacios' representations to CDCR "were false." (FAC at 8:5-7.) Plaintiff, however, apparently never challenged Palacios' statements pursuant to the available administrative remedies. (See Cal. Code Regs., tit. 15, § 3723.)

D. The FAC Fails to Allege Defendants Caused Plaintiff Harm

In opposition, Plaintiff alleges that there are "three categories of specific misrepresentations" which are: (1) that completion was achievable during his parole; (2) that Plaintiff only partially completed homework; and (3) that Defendant Palacios allegedly stated that HOPE loses homework. (Pl.'s Opp.'n at 5:24-6:3.) The FAC, however, acknowledges that Defendant Palacios' opinions concerning Plaintiff's failure to complete treatment included her professional opinion that Plaintiff "partially participates in discussion," "demonstrates partial understanding of the subject material" and "is fixated on lawsuits instead of subject material". (FAC at 7:10-13.) The FAC also acknowledges that Defendant Palacios is a Licensed Marriage and Family Therapist. (*Id.* at 2:25-17.) Plaintiff lacks the necessary expertise to dispute Palacios' professional opinion. (See *People v. Phillips* (2022) 75 Cal.App.5th 643, 682 ("Lay opinion testimony is admissible where no particular scientific knowledge is required").)

Moreover, Plaintiff's opposition does not dispute that the "November 2025 1502-DR" reflected that Plaintiff had a "Stable" score of 6. (FAC at 7:26-28.) Or that Plaintiff incurred parole violations. California law explicitly provides that reasons to retain a supervised person in a sex

offender management program "may include, but are not limited to . . . a Stable-2007 score of four or higher for males only" as well as "Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review." (Cal. Code Regs., tit. 15, § 3574(f)(2)-(4).)

D. Petition for Writ of Habeas Corpus

Plaintiff argues in opposition that he is not requesting a change to his current parole condition or an order that he be discharged from parole. (Pl.'s Opp.'n at 10:7-9.) The FAC, however, seeks monetary damages based on Plaintiff's "parole-supervision conditions". (FAC at 10:2-9.) And alleges that he remained "on parole supervision longer than he otherwise would have" and "suffered a denial of discharge in November 2025" based on the events at issue in this action. (*Id.* at 15:13-15.) Such claims should have been first exhausted and then brought in a habeas petition. In this regard, a petition for writ of habeas corpus is the proper filing for a paroled registered sex offender seeking to challenge a condition of their parole. (*See In re E.J.* (2010) 47 Cal.4th 1258, 1271; Cal. Rules of Court, 4.552(b)(2)(C).) Plaintiff's action seeks to obtain monetary damages based on alleged unlawful parole conditions without any finding that his continued parole conditions are improper.

E. Failure to Allege Facts Sufficient to State a Cause of Action Pursuant to Civ. Code § 52.1

Plaintiff's opposition asserts that a showing of threat, intimidation, or coercion "is not required where the very conduct interfering with the right is itself coercive." (Pl.'s Opp.'n at 15: 3-6.) Plaintiff relies on *Reese v. County of Sacramento* (9th Cir. 2018) 888 F.3d 1030, 1043 and *Cornell v. City and County of San Francisco* (2017) 17 Cal.App.5th 766, 802. Those cases, however, concerned excessive force and wrongful arrest. As the California Court of Appeal has explained, "[a]ny arrest without probable cause involves coercion, and where accompanied by evidence of specific intent to violate the arrestee's Fourth Amendment rights, such an arrest may provide the basis for a Bane Act claim." (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 483).)

This action does not concern a wrongful arrest or excessive force. There is no dispute that Plaintiff's arrest and initial parole supervision were lawful. As such, the reasoning of *Reese* and

Cornell are not applicable. Because the FAC contains no factual allegations establishing that either Defendant intentionally tried to prevent Plaintiff from doing something he had a right to do under the law, Defendants' demurrer should be granted. (See *Schmid*, 60 Cal. App. 5th at 483 ("Not only is the record bereft of any alleged conduct that 'rises to the level of a threat of violence' but appellants also 'completely fail[ ] to satisfy the requirement that city engaged in a form of coercion.'").

CONCLUSION

Plaintiff's FAC seeks monetary relief because of his continued parole conditions without exhausting available administrative remedies—let alone a finding that his continued parole conditions are improper—based on allegations that fail to establish any fault by Defendants. While Plaintiff clearly wishes to forgo continued sex offender treatment, he has failed to allege facts establishing that his continued treatment is the result of any wrongful conduct by the Defendants. If Plaintiff wants to attempt to establish those facts, he needs to exhaust his available administrative remedies and bring a habeas petition if necessary. Defendants' demurrer should, therefore, be granted.

Dated: July 7, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence
CYNTHIA G. LAWRENCE
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PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S REPLY IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: July 7, 2026

Kim Schmitt

Kim Schmitt

SERVICE LIST

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